

1 ENGROSSED HOUSE
2 BILL NO. 4119

By: West (Tammy) of the House

3 and

4 Thompson of the Senate

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6
7 An Act relating to civil procedure; amending 12 O.S.
8 2021, Section 1148.6, which relates to defendant
9 asserting title to real property; requiring bond;
10 providing bond limit; updating statutory language;
11 and providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is
14 amended to read as follows:

15 Section 1148.6. A. 1. In all cases in which the defendant
16 wishes to assert title to ~~the land~~ real property or that the
17 boundaries of the ~~land~~ real property are in dispute, he or she
18 shall, before the time for the trial of the cause, file a verified
19 answer or an affidavit which contains a full and specific statement
20 of the facts constituting his or her defense of title or boundary
21 dispute. If the defendant files such a verified answer or
22 affidavit, the action shall proceed as one in ejectment before the
23 proper division of the district court. If the defendant files an
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1 affidavit, he or she shall file an answer within ten (10) days after
2 the date the affidavit is filed.

3 2. The court may make an order for the safekeeping of the real
4 property subject to this action by ordering a defendant who asserts
5 title to real property to give a bond, payable to the clerk of the
6 court, not to exceed ten percent (10%) of the current market value
7 of such real property, conditioned upon compliance with the future
8 order or judgment of the court with respect to the subject matter of
9 the controversy.

10 B. In all cases in which the cause of action is based on an
11 asserted breach of a lease by the defendant, or the termination or
12 expiration of a lease under which the defendant claims an interest
13 in the property in a verified answer or affidavit, the plaintiff may
14 proceed with the forcible entry and detainer action instead of an
15 ejectment action.

16 C. No answer by the defendant shall be required before the time
17 for trial of the cause.

18 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate